

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Shadman Khan	Team: Squad #3	CCRB Case #: 202103797	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 06/23/2021 1:25 AM	Location of Incident: Front of § 87(2)(b)	Precinct: 105	18 Mo. SOL 12/23/2022	EO SOL 12/23/2022	
Date/Time CV Reported Thu, 06/24/2021 8:19 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 06/24/2021 8:19 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Daniel Carro	12581	965970	105 PCT
2. LT Franklyn Aizaga	00000	939850	105 PCT
3. PO Jason Quintanilla	06123	959103	105 PCT
4. PO Timothy Lerner	17382	958810	105 PCT
5. PO Michael Zerbo	18014	968201	105 PCT
6. PO Guillermo Cruz	22612	957498	105 PCT
7. PO Joseph Tomlinson	04934	968160	105 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Nicole Hagenah	08686	963562	105 PCT

Officer(s)	Allegation	Investigator Recommendation
A.LT Franklyn Aizaga	Abuse: Lieutenant Franklyn Aizaga entered § 87(2)(b) in Queens.	§ 87(2)(b)
B.LT Franklyn Aizaga	Abuse: Lieutenant Franklyn Aizaga forcibly removed § 87(2)(b) to the hospital.	§ 87(2)(b)
C.LT Franklyn Aizaga	Force: Lieutenant Franklyn Aizaga used physical force against § 87(2)(b)	§ 87(2)(b)
D.PO Timothy Lerner	Force: Police Officer Timothy Lerner used physical force against § 87(2)(b)	§ 87(2)(b)
E.PO Jason Quintanilla	Force: Police Officer Jason Quintanilla used physical force against § 87(2)(b)	§ 87(2)(b)
F.PO Michael Zerbo	Force: Police Officer Michael Zerbo used physical force against § 87(2)(b)	§ 87(2)(b)
G.POM Daniel Carro	Force: Police Officer Daniel Carro used physical force against § 87(2)(b)	§ 87(2)(b)
H.LT Franklyn Aizaga	Force: Lieutenant Franklyn Aizaga used a chokehold against § 87(2)(b)	§ 87(2)(b)
I.LT Franklyn Aizaga	Force: Lieutenant Franklyn Aizaga restricted § 87(2)(b)'s breathing.	§ 87(2)(b)
J.POM Daniel Carro	Force: Police Officer Daniel Carro used physical force against § 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
K.POM Daniel Carro	Discourtesy: Police Officer Daniel Carro spoke discourteously to § 87(2)(b)	
L.PO Guillermo Cruz	Abuse: Police Officer Guillermo Cruz frisked § 87(2)(b)	
M.PO Guillermo Cruz	Abuse: Police Officer Guillermo Cruz searched § 87(2)(b)	
N.POM Daniel Carro	Abuse: Police Officer Daniel Carro refused to provide his name to § 87(2)(b)	
O.PO Guillermo Cruz	Abuse: Police Officer Guillermo Cruz refused to provide his name to § 87(2)(b)	
P.POM Daniel Carro	Abuse: Police Officer Daniel Carro failed to provide § 87(2)(b) with a business card.	
Q.PO Guillermo Cruz	Abuse: Police Officer Guillermo Cruz failed to provide § 87(2)(b) with a business card.	
R.PO Joseph Tomlinson	Abuse: Police Officer Joseph Tomlinson refused to provide his name to § 87(2)(b)	
S.PO Joseph Tomlinson	Abuse: Police Officer Joseph Tomlinson failed to provide § 87(2)(b) with a business card.	

Case Summary

On June 24, 2021, § 87(2)(b) filed this complaint with the CCRB using the online website.

On June 23, 2021, at approximately 1:25a.m., outside of § 87(2)(b) in Queens, officers responded to the location due to a 911 call. Lt. Franklyn Aizaga instructed officers to place § 87(2)(b) in custody and remove her to the hospital, resulting in officers entering the residence (**Allegation A: Abuse of Authority, § 87(2)(g)**) (**Allegation B: Abuse of Authority, § 87(2)(g)**). PO Timothy Lerner, PO Jason Quintanilla, PO Michael Zerbo, PO Daniel Carro, and Lt. Franklyn Aizaga from the 105th Precinct grabbed § 87(2)(b) and pulled her to the ground onto her stomach (**Allegations C to G: Force, § 87(2)(g)**). While on the floor, Lt. Aizaga placed his hands around the back of § 87(2)(b)'s neck, making contact with the front of § 87(2)(b)'s neck and preventing her from breathing normally (**Allegation H and I: Force, § 87(2)(g)**). § 87(2)(b) was placed in handcuffs and escorted to an ambulance. While being escorted to the ambulance, PO Carro placed § 87(2)(b) face first against the side of the ambulance (**Allegation J: Force, § 87(2)(g)**). PO Carro stated, "Fucking walk. Walk. Don't fucking kick me. Do not fucking kick me," and, "Put your fucking foot down," towards § 87(2)(b) (**Allegation K: Discourtesy, § 87(2)(g)**).

PO Guillermo Cruz from the 105th Precinct searched § 87(2)(b)'s frisked and searched pockets while she was against the ambulance (**Allegation L: Abuse of Authority, § 87(2)(g)**) (**Allegation M: Abuse of Authority, § 87(2)(g)**). § 87(2)(b) was placed inside of the ambulance and strapped down to a stretcher. § 87(2)(b) asked PO Carro, PO Cruz, and PO Joseph Tomlinson from the 105th Precinct for their name and business cards. None of the officers provided § 87(2)(b) their information (**Allegations N and O: Abuse of Authority, § 87(2)(g)**) (**Allegation P and Q: Abuse of Authority, § 87(2)(g)**) (**Allegation R and S: Abuse of Authority, § 87(2)(g)**). § 87(2)(b) was not arrested or summonsed as a result of this incident.

The investigation received 22 body-worn camera (BWC) videos regarding this incident (Board Review 01; Summarized in Board Review 02 to Board Review 23).

Findings and Recommendations

Allegation (A) Abuse of Authority: Lieutenant Franklyn Aizaga entered § 87(2)(b) in Queens.

Allegation (B) Abuse of Authority: Lieutenant Franklyn Aizaga forcibly removed § 87(2)(b) to the hospital.

Allegation (C) Force: Lieutenant Franklyn Aizaga used physical force against § 87(2)(b)

Allegation (D) Force: Police Officer Timothy Lerner used physical force against § 87(2)(b)

Allegation (E) Force: Police Officer Jason Quintanilla used physical force against § 87(2)(b)

Allegation (F) Force: Police Officer Michael Zerbo used physical force against § 87(2)(b)

Allegation (G) Force: Police Officer Daniel Carro used physical force against § 87(2)(b)

In her statements to the CCRB, § 87(2)(b) stated that her sister, § 87(2)(b) made several 911 calls regarding a domestic incident at her mother's home. After some time, approximately eight to nine officers arrived at the incident location. When the officers arrived, § 87(2)(b) sat on her porch railing and voiced her opinions about the NYPD. § 87(2)(b) made statements about the police and questioned the officers as to why they were there. § 87(2)(b) exited the residence and spoke to several officers about a domestic incident. § 87(2)(b) did not know what § 87(2)(b) stated to the officers. § 87(2)(b) remained on the railing of her porch

and continued to make statements about how many officers were on scene. An officer stated the name of one of § 87(2)(b)'s relatives, which upset § 87(2)(b). During this time, § 87(2)(b)'s mother exited the residence. Officers moved closer to the porch of the residence to speak to § 87(2)(b)'s mother. § 87(2)(b) did not want officers in the house because she believed officers would use the entry as “an opportunity to draw weapons, get trigger happy, shoot people on sight, and then lie about it.” § 87(2)(b) instructed her mother to go back inside of the house. As § 87(2)(b) guided her mother into the house and while § 87(2)(b) was in the doorway, multiple officers grabbed her. In her follow up call, § 87(2)(b) stated that the officers stepped past the entry of her home to grab her. § 87(2)(b) did not know how many officers made contact with her body. § 87(2)(b) stated that she was “tussling,” and resisting the officers and fought against them. § 87(2)(b) instructed the officers to “Get the hell off,” of her and cursed towards the officers as they grabbed her. § 87(2)(b) fell to her knees and was taken to the ground onto her stomach, where officers put their body weight on top of her upper and lower back, forcing her face into the porch pavement. § 87(2)(b) was placed in an ambulance and taken to an unknown hospital (Board Review 24, Board Review 26).

The event documents related to this incident indicated that a male caller contacted the police regarding a dispute he had with his sister. At a later time, a female caller called and stated that the situation had escalated and that the brother was intoxicated and high on drugs. The male threatened to harm the female and attempted to hurt her. The female caller believed that the male had a mental history. The female caller called 911 once more and stated that the male hit her sister (Board Review 55).

PO Zerbo's BWC video captured the clearest moment officers approached § 87(2)(b) to place her in handcuffs. At 01m45s, § 87(2)(b) explains that a male, identified by the investigation as § 87(2)(b) comes into the house drunk, yelling and screaming at her. § 87(2)(b) has been looking for trouble and stated that the police would not do anything. § 87(2)(b) states that § 87(2)(b) was possibly inside of the house. § 87(2)(b) is heard cursing towards officers and complaining that there are no black officers. § 87(2)(b) continuously shouts towards the officers, calling them, “monkeys” and that they are there to kill black people. At 04m10s, PO Quintanilla attempts to handcuff § 87(2)(b) who moves her hands away and backs into the house to avoid being handcuffed. PO Zerbo moves forward and holds § 87(2)(b) by the arms as PO Quintanilla and another officer help carry § 87(2)(b) to the ground. § 87(2)(b) is consistently heard shouting throughout the handcuffing process and is seen physically trying to pull away from the officers. § 87(2)(b) is placed in handcuffs while multiple officers hold her arms behind her back. § 87(2)(b) is lifted back up into standing position and escorted away by two officers. PO Zerbo enters the house with Lt. Aizaga and multiple other officers to look for § 87(2)(b) who was not found (Board Review 01; Summarized in Board Review 07).

Lt. Aizaga's BWC video was similar to what was seen in PO Zerbo's BWC video. At 02m30s, § 87(2)(b) states that an individual named, “§ 87(2)(b)” is possibly inside of the house. Lt. Aizaga responds, “We gotta go get § 87(2)(b)”. At 04m01s, Lt. Aizaga states that they have to smooth the situation over to get § 87(2)(b). He then states, “Can you grab your mother and your sister please?” § 87(2)(b) turns around and shouts, “Shut the fuck up. Shut the fuck up on my property, bitch,” in a much louder tone of voice. An officer turns to Lt. Aizaga and states, “We're gonna EDP her?” Lt. Aizaga agrees and states that, “If it's gonna have to get to it, yes.” At 04m16s, Lt. Aizaga states, “We're gonna have to,” and multiple officers move towards § 87(2)(b) who retreats into the house. The officers enter the house as well. Once Lt. Aizaga reaches the front, officers have already started to lower § 87(2)(b) face down on the ground at the entryway. § 87(2)(b) is heard shouting and seen moving her body around. § 87(2)(b) is lifted up

onto her feet and escorted away by other officers. Lt. Aizaga and multiple other officers enter the house and look for the male named § 87(2)(b) (Board Review 01; Summarized in Board Review 04).

PO Quintanilla's, PO Lerner's, and PO Carro's BWC videos were similar to what was seen in PO Zerbo's and Lt. Aizaga's BWC videos. The videos only captured the incident from slightly different angles. All officers hold § 87(2)(b) while she is brought to the ground and placed in handcuffs (Board Review 01).

In his statement to the CCRB, Lt. Aizaga stated that he responded to a job involving a violent Emotionally Disturbed Person (EDP). When Lt. Aizaga first responded on scene, he saw several other officers already present. At the time, one officer spoke to § 87(2)(b) while § 87(2)(b) stood at the doorway of the house, physically blocking it. § 87(2)(b) acted loud and excited during this time. Lt. Aizaga further explained that § 87(2)(b) made statements such as, "Fuck you," "You white devils," "You NYPD kill black people," "I only see one black cop here," and, "Get the fuck out." § 87(2)(b) explained that she had an issue with her brother at the time. Since the initial job stated that the brother was intoxicated, high, and made threats towards people, Lt. Aizaga made the determination that they would have to enter the house in order to see if the brother was inside. Lt. Aizaga also stated that they needed to enter because the brother could be a potential danger to himself or others in the home. Multiple officers attempted to enter the house at the time, but § 87(2)(b) refused to leave the doorway and provide entry. § 87(2)(b) continued to shout towards the officers. Lt. Aizaga made the decision to remove § 87(2)(b) to the hospital because she acted in a very agitated stated, yelled and screamed towards officers, and was a potential harm to herself or others, including officers. When officers approached § 87(2)(b) she actively resisted. There was a physical confrontation between officers and § 87(2)(b) where officers brought § 87(2)(b) to the ground and Lt. Aizaga helped restrain her. Lt. Aizaga was unable to explain how § 87(2)(b) went to the ground as it happened very quickly. Lt. Aizaga recalled officers attempting to remove § 87(2)(b) by grabbing her arm but did not see if officers pulled § 87(2)(b) to the ground. When Lt. Aizaga reached § 87(2)(b) he grabbed her by the hair. Lt. Aizaga explained that he grabbed her by the hair due to a quick reaction and it was the first part he could reach. § 87(2)(b) was placed in handcuffs and removed to the ambulance (Board Review 29).

PO Lerner, PO Quintanilla, PO Zerbo, and PO Carro all provided corroborative statements regarding § 87(2)(b)'s actions and behavior prior to the use of force. All officers stated that they moved towards § 87(2)(b) and grabbed her in order to place her in handcuffs. All officers denied seeing any officer grab § 87(2)(b) by the neck (Board Review 31, Board Review 33, Board Review 35, Board Review 37).

According to PO Lerner, officers attempted to place § 87(2)(b) in handcuffs. PO Lerner grabbed § 87(2)(b)'s arms and helped other officers bring her down to the ground. § 87(2)(b) pulled her arms away and resisted the officers' attempts to place her in handcuffs. Once on the ground, § 87(2)(b) was placed in handcuffs (Board Review 31).

According to PO Quintanilla, he attempted to place § 87(2)(b) in handcuffs, but she moved her arms away. PO Quintanilla grabbed § 87(2)(b)'s wrist and she pulled away from PO Quintanilla, causing both of them to fall onto the ground. Multiple officers assisted PO Quintanilla in the attempt to pull § 87(2)(b)'s arms behind her back. § 87(2)(b) moved her arms, pulled the arms away, kicked, and screamed the entire time. PO Quintanilla and several other officers helped place § 87(2)(b) in handcuffs (Board Review 33).

According to PO Zerbo, § 87(2)(b) tried to stop officers from entering the incident location.

Multiple officers restrained § 87(2)(b) at this point. PO Zerbo stated that he stood in the back and held § 87(2)(b)'s arm. PO Zerbo stated that he held her arm to prevent her from moving. PO Zerbo did not take any other action. § 87(2)(b) was placed in handcuffs (Board Review 35).

According to PO Carro, multiple officers approached § 87(2)(b) to place her in custody. § 87(2)(b) stepped back into the house to avoid being placed in handcuffs. PO Carro grabbed § 87(2)(b) by the arm. § 87(2)(b) resisted officers and attempted to move her hands around and yelled. PO Carro held § 87(2)(b)'s arm while another officer placed her in handcuffs. PO Carro did not recall if § 87(2)(b) was on the floor at any point. (Board Review 37).

The investigation received Threat, Resistance, and Incident report #1 § 87(2)(b). The report stated that officers responded to a 911 call for an EDP. Upon arrival, the subject, identified by the investigation as § 87(2)(b), acted erratic at the doorway of the residence and prevented officers from entering and locating the subject of the 911 call. PO Quintanilla attempted to put handcuffs on § 87(2)(b) who resisted. Force was used to take § 87(2)(b) to the ground and place her in custody. § 87(2)(b) did not sustain any injuries and was removed to § 87(2)(b) § 87(2)(b) (Board Review 43).

There are three elements used to determine whether exigent circumstances exist to justify an entry without a warrant: The police must have reasonable grounds to believe that there is an emergency at hand and that there is an immediate need for their assistance for the protection of life or property, they must have reasonable basis to associate the emergency with the area or place being searched, and that officers must not be primarily motivated by intent to arrest and seize evidence. People v. Musto 106 A.D.3d 1380 (Board Review 57).

The primary duty of all members of the service is to preserve human life. The safety of all persons involved is paramount in cases involving emotionally disturbed persons. If such a person is dangerous to himself or others, force may be used when it is reasonable to prevent serious physical injury or death. Members of the service will use only the reasonable force necessary to gain control or custody of the subject. An emotionally disturbed person is defined as a person who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others. When a uniformed member of the service reasonably believes that a person is apparently mentally ill or emotionally disturbed, [they] must be taken into protective custody because the person conducting himself in a manner likely to result in serious injury to himself or others. Patrol Guide Procedure 221-13: Mentally Ill or Emotionally Disturbed Persons (Board Review 45).

Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances. In determining whether the use of force is reasonable, members of the service should consider the nature and severity of the crime/circumstances, actions taken by the subject, duration of the action, immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, whether the subject is actively resisting custody, whether the subject is attempting to evade arrest by flight, number of subjects in comparison to the number of MOS, size, age, and condition of the subject in comparison to the MOS, subject's violent history, if known, presence of hostile crowd or agitators, and if the subject is apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence. Patrol Guide Procedure 221-01: Force Guidelines (Board Review 46).

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

Allegation (H) Force: Lieutenant Franklyn Aizaga used a chokehold against § 87(2)(b)
Allegation (I) Force: Lieutenant Franklyn Aizaga restricted § 87(2)(b)'s breathing.

According to § 87(2)(b) after she was taken to the ground, an unknown officer placed their hands around her neck from behind and made contact with the front of her neck for approximately two to three minutes. § 87(2)(b) stated she was, “not really,” able to breathe normally during that time (Board Review 24, Board Review 26)

In Lt. Aizaga’s BWC video, at 04m37s, Lt. Aizaga’s left hand is at the back of § 87(2)(b)’s head, holding her down onto the ground. § 87(2)(b) continuously shouts towards officers as she is placed in handcuffs (Board Review 01; Summarized in Board Review 04).

While Lt. Aizaga affirmed helping hold § 87(2)(b) on the ground to place her in handcuffs, he denied grabbing § 87(2)(b) by the neck, did not see any officer grab § 87(2)(b) by the neck, and did not hear § 87(2)(b) complain of being unable to breathe. Lt. Aizaga was shown his BWC video (see above summary), which showed § 87(2)(b) on the ground with Lt. Aizaga's hand on the back of her head. Lt. Aizaga placed his hand there to keep § 87(2)(b) down to prevent her from biting or spitting on any individuals. Lt. Aizaga explained that the hand did not wrap around to the neck area at the time (Board Review 29).

PO Lerner, PO Quintanilla, PO Zerbo, and PO Carro all provided corroborative statements and denied seeing any officer grab § 87(2)(b) by the neck (Board Review 31, Board Review 33, Board Review 35, Board Review 37).

A chokehold shall include, but is not limited to, any pressure to the throat, carotid artery or windpipe, which may prevent or hinder breathing, or reduce intake of air or blood flow. Members of the service SHALL NOT use a chokehold. Patrol Guide Procedure 221-01: Force Guidelines (Board Review 46).

§ 87(2)(g)
[REDACTED]

Allegation (J) Force: Police Officer Daniel Carro used physical force against § 87(2)(b)
Allegation (K) Discourtesy: Police Officer Daniel Carro spoke discourteously to § 87(2)(b)

According to § 87(2)(b) she was carried face down on the pathway of her home by multiple officers. PO Carro placed the front of § 87(2)(b)'s body and face against an ambulance and handcuffed her. PO Carro repeatedly cursed toward § 87(2)(b) using the "F-word" (Board Review 24, Board Review 26).

In PO Carro's BWC video, at approximately 02m51s, § 87(2)(b) is escorted out of the front yard and towards the ambulance. At 03m05s, PO Carro is heard stating, "Fucking walk. Walk. Don't fucking kick me. Do not fucking kick me." The video indicates an ongoing struggle as PO Carro escorts § 87(2)(b) to the ambulance. PO Carro then holds § 87(2)(b) against the side of the ambulance for a few seconds before moving her to the entrance of the ambulance. At 04m04s, PO Carro states, "Put your fucking foot down," as § 87(2)(b) enters the ambulance (Board Review 01; Summarized in Board Review 10).

In PO Cruz's BWC video, at approximately 02m58s, § 87(2)(b) is escorted away to the ambulance by PO Tomlinson and PO Carro. § 87(2)(b) shouts towards the officers as she is escorted away. § 87(2)(b) initially appears to walk as the officers escort her to the ambulance, but then begins to pull away from the officers. § 87(2)(b) pulls away from both officers and appears to be placing her feet in front of PO Carro's feet as she pulls away. § 87(2)(b) is then placed against the side of the ambulance while PO Carro and PO Tomlinson hold her (Board Review 01; Summarized in Board Review 11).

According to PO Carro, once § 87(2)(b) was placed in handcuffs, he and another officer escorted § 87(2)(b) to the ambulance. § 87(2)(b) acted erratically, cursed towards officers, and resisted while being escorted to the ambulance. § 87(2)(b) planted her feet on the ground and kicked behind her, making contact with PO Carro. PO Carro did not recall if he stated anything in response to this. PO Carro placed and held § 87(2)(b) against the side of the ambulance in order to control her. § 87(2)(b) was not thrown against the ambulance. PO Carro was shown his BWC video, where he is heard stating, “Just fucking walk. Walk. Don’t fucking kick me. Do not fucking kick me.” PO Carro stated he made this statement because § 87(2)(b) was resisting, kicking, and planting her feet onto the ground. PO Carro was also shown the part where he stated, “Put your fucking foot down.” PO Carro explained he stated this because § 87(2)(b) kicked back toward PO Carro and kicked him while trying to place her in the ambulance (Board Review 37).

Members of service must value human life, respect the dignity of each individual, and render their services with courtesy and civility. Patrol Guide Procedure 200-02 (Board Review 48).

DAO-DCT Disciplinary Case No. 2017-17005 states that in prior disciplinary cases, the NYPD has held that the use of profane remarks during stressful situations or while an officer is trying to get a chaotic situation under control, does not constitute misconduct. However, the courts noted that a stressful situation must be defined narrowly, and that civilians protesting an arrest does not constitute a stressful situation (Board Review 49).

§ 87(2)(g)

§ 87(2)(g)

Allegation (L) Abuse of Authority: Police Officer Guillermo Cruz frisked § 87(2)(b)

Allegation (M) Abuse of Authority: Police Officer Guillermo Cruz searched § 87(2)(b)

According to § 87(2)(b) while she was placed against the side of the ambulance, PO Carro searched her pockets. § 87(2)(b) stated that she did not have anything in her pockets. § 87(2)(b) was informed that she was not being arrested (Board Review 24, Board Review 26).

In his BWC video, at approximately 03m37s, PO Cruz puts on some blue gloves and informs § 87(2)(b) that he will, “pat her down,” really quickly. § 87(2)(b) is seen being held against an ambulance by PO Carro and another officer. PO Cruz then reaches for the left side of § 87(2)(b)’s body initially, then moves towards the right side. PO Cruz is seen patting and grabbing the outer of § 87(2)(b)’s right pant pocket. At 03m48s, PO Cruz moves to the left of side of § 87(2)(b) and reaches for her body using his left hand. The camera does not capture what occurs for two seconds before showing PO Cruz remove his hand from the left side waist of § 87(2)(b)’s body. PO Cruz does not enter any pockets on the right side of § 87(2)(b). PO Cruz does not appear to reach into any pocket on the left side of § 87(2)(b) (Board Review 01; Summarized in Board Review 11).

In his statement to the CCRB, PO Cruz stated that when he arrived at the location, § 87(2)(b) was being escorted to the ambulance. Once § 87(2)(b) was brought to the ambulance, she was placed against the side of the ambulance to be frisked. PO Cruz described this as a “pat down” and only frisked § 87(2)(b) for any weapons. PO Cruz added that the frisk was done for the safety of the officers and the medical staff (Board Review 41).

Officers are to remove any property that is dangerous to life or will facilitate escape before removing an emotionally disturbed person to the hospital in an ambulance. Patrol Guide Procedure 221-13 (Board Review 45).

§ 87(2)(g)

§ 87(2)(g)

Allegation (N) Abuse of Authority: Police Officer Daniel Carro refused to provide his name to

§ 87(2)(b)

Allegation (O) Abuse of Authority: Police Officer Guillermo Cruz refused to provide his name to § 87(2)(b)

Allegation (P) Abuse of Authority: Police Officer Daniel Carro failed to provide § 87(2)(b) **with a business card.**

Allegation (Q) Abuse of Authority: Police Officer Guillermo Cruz failed to provide § 87(2)(b) **with a business card.**

Allegation (R) Abuse of Authority: Police Officer Joseph Tomlinson refused to provide his name to § 87(2)(b)

Allegation (S) Abuse of Authority: Police Officer Joseph Tomlinson failed to provide § 87(2)(b) **with a business card.**

According to § 87(2)(b) once she was inside of the ambulance, she began to ask for the names and cards from every officer on the scene. § 87(2)(b) also asked the officers in the ambulance if their BWCs were on and spoke with the EMS worker. § 87(2)(b) stated she was screaming and used cursing at the officers. None of the officers gave § 87(2)(b) their information (Board Review 24). On May 25, 2022, § 87(2)(b) called the CCRB and informed the investigation that PO Carro went to her home and provided his business card to her (Board Review 28). PO Carro was interviewed by the CCRB on March 11, 2022.

On May 23, 2022, § 87(2)(b) left a voicemail message regarding this complaint. § 87(2)(b) stated that one of the officers present during the incident visited her home again and provided his business card. § 87(2)(b) stated that card was provided in regard to her initial request made during the 2021 incident, where the officer failed to provide the business card when asked for one (Board Review 27).

In PO Carro’s BWC, at 07m04s, § 87(2)(b) states, “I want your card Capro. I want your card, Mexican. I want your card, white trash, KKK descendant...I want your card. 1, 2, 3, 4, 5.” The

request appears to be made towards PO Carro, PO Cruz, PO Tomlinson, and the ambulance staff. None of the officers respond to § 87(2)(b)'s request. § 87(2)(b) is strapped down onto a gurney at the time the request was made. No officers provide business cards to § 87(2)(b) in the ambulance. The video ends after PO Carro exits the ambulance at the hospital (Board Review 01; Summarized in Board Review 10).

According to PO Carro, once § 87(2)(b) was inside of the ambulance, she continued to curse and make racist remarks towards the officers. § 87(2)(b) read the names and shield numbers from the chests of the officers but did not specifically request the information (Board Review 37). During his second interview with the CCRB, PO Carro stated that he recalled § 87(2)(b) requesting business cards during the entirety of the incident. PO Carro did not provide § 87(2)(b) with a business card at the time due to her behavior. PO Carro provided § 87(2)(b) with a business card once at the hospital, where the environment was controlled, and it was safe to do so. PO Carro affirmed that he did return to § 87(2)(b)'s residence after the incident but did not recall what for and if he provided her a business card at that time (Board Review 39).

According to PO Cruz, § 87(2)(b) was placed inside of the ambulance and restrained on a gurney. § 87(2)(b) continued to use profanity and racial slurs towards the officers. PO Cruz recalled that § 87(2)(b) requested a business card at one point. PO Cruz did not provide § 87(2)(b) with a business card while inside of the ambulance due to the situation and how she behaved. PO Cruz provided a card to § 87(2)(b) once at the hospital. PO Cruz believed that PO Carro provided a business card to her as well (Board Review 41).

The investigation received confirmation that PO Tomlinson resigned from the NYPD on January 17, 2022 (Board Review 50).

Officers are to officer pre-printed Right to Know Business Card (RTKA card) upon conclusion of law enforcement activities, except in cases when a summons is issued or an arrest is made, or exigent circumstances are present (i.e., physical resistance, flight, imminent danger of physical injury or damage to property, or other factors make such procedure impractical). Uniformed member of service are to provide business cards as appropriate at the request of the members of public. Administrative Guide 304-11 (Board Review 51).

§ 87(2)(g)
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Civilian and Officer CCRB Histories

- § 87(2)(b) [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
- Lt. Aizaga has been a member of service for 16 years and has been a subject in seven CCRB complaints and 13 allegations, of which one was substantiated.
 - 200612467 involved a substantiated allegation of abuse of authority against Lt. Aizaga. The Board recommended command discipline and the NYPD imposed instructions.
 - § 87(2)(g) [REDACTED]
[REDACTED]
- PO Carro has been a member of service for four years this is the first CCRB complaint to which he has been a subject.
- PO Quintanilla has been a member of service for seven years and has been a subject in two CCRB complaints and two allegations, neither of which was substantiated. § 87(2)(g) [REDACTED]
[REDACTED]
- PO Lerner has been a member of service for seven years and has been a subject in three CCRB complaints and five allegations, of which two were substantiated.
 - 201804217 involved a substantiated allegation of threat of arrest and a threat of force against PO Lerner. The Board recommended command level instructions and the NYPD imposed instructions.
 - § 87(2)(g) [REDACTED]
[REDACTED]
- PO Zerbo has been a member of service for three years and this is the first CCRB complaint to which he has been a subject.
- PO Cruz has been a member of service for seven years and a subject in two CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
[REDACTED]
- PO Tomlinson resigned from the NYPD on January 17, 2022.

Mediation, Civil, and Criminal Histories

- § 87(2)(g) [REDACTED]
- As of August 16, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (Board Review 54).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]

Squad: 3

Investigator: Shadman Khan Investigator Shadman Khan October 3, 2022
Signature Print Title & Name Date

Squad Leader: Rolando Vasquez IM Rolando Vasquez 10/4/2022
Signature Print Title & Name Date